

Present

Mr. Justice Sheikh Abdul Awal

Criminal Appeal No. 494 of 2014

Md. Mahmudur Rahman

.....Accused-appellant.

-Versus-

The State and another

.....Respondent.

No one appears

.....For the accused-appellant.

Ms. Sabina Perven, A.A.G with,
Ms. Koheenoor Akter, A.A.G.

..... For the respondent No.1

Heard and Judgment on 17.01.2024.

Sheikh Abdul Awal, J:

This criminal appeal at the instance of convict appellant, Md. Mahmudur Rahman is directed against the impugned judgment and order of conviction and Sentence dated 13.01.2014 passed by the learned Judge of Jononirapotta Bignokari Aporadh Domon Tribunal and Special Sessions Judge, Court No. 2 Rajshahi in Sessions Case No. 427 of 2011 arising out of C.R. Case No. 1257 of 2010 (Boalia) convicting the accused appellant under section 138 of the Negotiable Instruments Act, 1881 and sentencing him thereunder to suffer simple imprisonment for a period of

06 (six) months and to pay a fine of Tk. 46,591/-(forty six five hundred and ninety one), in default, to suffer simple imprisonment for 2(two) months more.

The gist of the case is that one, Md. Mahatab Hossain, representative of Bank Asia Limited as complainant filed a petition of complaint being C.R. Case No. 1257 of 2010 (Boalia) in the Court of the learned Chief Metropolitan Magistrate, Rajshahi against the convict-appellant under section 138 of the Negotiable Instruments Act, 1881 stating, inter-alia, that to adjust the loan amount of Bank Asia Ltd. on 03.10.2010 the convict-appellant issued a cheque being No. SB 341424891 of Tk. 46,591/-(forty six five hundred ninety one) in favour of the Bank Asia Ltd. and thereafter, the complainant presented the said cheque for encashment in bank but the said cheque was dishonoured for insufficient of fund and thereafter, a legal notice was sent through Advocate to the accused appellant on 06.10.2010 asking him to pay the cheque's amount within 30 days and who received the said notice but did not pay any heed to it and hence, the case.

On receipt of the petition of complaint, the learned Chief Metropolitan Magistrate examined the complainant under Section 200 of the Code of Criminal Procedure and who after being satisfied took cognizance against the accused-appellant under section 138 of the Negotiable Instrument Act, 1881 and also issued summon against him

fixing next date and thereafter the accused appellant appeared before the Chief Metropolitan Magistrate and obtained bail.

In this background the case record was sent to the Court of the learned Sessions Judge, Rajshahi wherein it was registered as Sessions Case No. 427 of 2011. Ultimately, the case was transferred to the Court of the learned Judge of Jononirapotta Bignokari Aporadh Domon Tribunal and Special Sessions Judge, Court No. 2 Rajshahi for disposal, wherein the accused appellant was put on trial to answer a charge under Section 138 of the Negotiable Instruments Act, 1881 in which the accused appellant pleaded not guilty and claimed to be tried stating that he has been falsely implicated in this case.

At the trial the complainant side examined 2 witnesses and also exhibited some documents to prove his case while the defence examined none.

On conclusion of trial, the learned Judge of Jononirapotta Bignokari Aporadh Domon Tribunal and Special Sessions Judge, Court No. 2 Rajshahi by the impugned judgment and order dated 13.01.2014 convicted the accused appellant under Section 138 of the Negotiable Instruments Act, 1881 and sentenced him thereunder to suffer simple imprisonment for a period of 06 (six) months and to pay a fine of Tk. 46,591/-(forty six five hundred

ninety one), in default, to suffer simple imprisonment for a 2(two) months more.

Being aggrieved by the aforesaid impugned judgment and order of conviction and sentence dated 13.01.2014, the convict-appellant preferred this criminal appeal.

No one found present to press the appeal on repeated calls in spite of fact that this criminal appeal has been appearing in the list for hearing with the name of the learned Advocate for the appellant.

In view of the fact that this petty old criminal appeal arising out of 6 (six) months sentence under Section 138 of the Negotiable Instruments Act, 1881 has been dragging before this Court for more than 10 years, I am inclined to dispose of it on the basis of the materials on record.

On perusal of record, it is found that the complainant after exhausting all the legal formalities filed C.R. Case No. 1257 of 2010 (Boalia) under section 138 of the Negotiable Instruments Act, 1881 against the convict appellant and during trial the complainant himself was examined as PW-1 and exhibited some documents to prove its case.

To constitute an offence under Section 138 of the NI Act, the following elements need to be fulfilled:

1. A cheque should have been issued by the payer for the discharge of a debt or other liability.

2. The cheque should have been presented or deposited by the payee within a period of six months from the date of drawing of the cheque or within the period of validity of the cheque, whichever is earlier.

3. The payee should have issued a notice in writing to the payer within 30 days of receipt of information regarding the return of the cheque as unpaid from the bank.

4. The payer/ drawer of the cheque should have paid the cheque amount within 30 days of receipt of the said notice from the payee.

5. If the payer is failed to pay in time the cheque amount, the payee should have filed a complaint within one month.

On an overall consideration of the facts, circumstances and the materials on record, it can be easily suggested that all the above quoted key elements are exist in the present case.

Besides, it appears from the record that a single bench of this Court at the time of admission of appeal by order dated 18.02.2014 granted bail to the convict-appellant for a period of 6 (six) months which was lastly extended on 07.07.2014 and thereafter, no one took any step to extend the order of bail as a result of which the said bail was expired long before on 07.07.2015. Therefore, in the attending facts and circumstances of the case, I find no

difficulty whatever in holding that the convict-appellant is a fugitive from law and justice.

In the case of Anti-Corruption Commission Vs. Dr. HBM Iqbal Alamgir, reported in 15 BLC, where it has been observed by the Appellate Division that Court would not act in aid of an accused person who is a fugitive from law and justice.

On an analyses of impugned judgment and order of conviction and sentence dated 13.01.2014 passed by the learned learned Judge of Jononirapotta Bignokari Aporadh Domon Tribunal and Special Sessions Judge, Court No. 2 Rajshahi in Sessions Case No. 427 of 2011, I find no flaw in the reasonings of the trial Court or any ground to assail the same inasmuch as all the key elements of Section 138 of Negotiable Instruments Act are exist in the case.

The learned Judge of Jononirapotta Bignokari Aporadh Domon Tribunal and Special Sessions Judge, Court No. 2 Rajshahi appears to have considered all the material aspects of the case and justly convicted the accused appellant under Section 138 of the Negotiable Instrument Act, 1881 and sentenced her thereunder to suffer simple imprisonment for a period of 06 (six) months and to pay a fine of Tk. 46,591/-(forty six five hundred ninety one), in default, to suffer simple imprisonment for a 2(two) months.

On the above, 2 (two) counts, this appeal must fail.

In the result the appeal is dismissed. The impugned judgment and order of conviction and Sentence dated 13.01.2014 passed by the learned Judge of Jononirapotta Bignokari Aporadh Domon Tribunal and Special Sessions Judge, Court No. 2 Rajshahi in Sessions Case No. 427 of 2011 arising out of C.R. Case No. 1257 of 2010 (Boalia) is hereby affirmed.

Since the appeal is dismissed the convict appellant, Md. Mahmudur Rahman is directed to surrender his bail bond within 6 (six) months from today to suffer his sentence, failing which the Trial Court shall take necessary steps to secure arrest against him.

The complainant is permitted to withdraw half of the cheque's amount as deposited in the Trial Court by the convict-appellant for the purpose of preferring this Criminal Appeal.

Send down the lower Court records at once.